



Kevin Neu <2489nhartman@gmail.com>

SUPPLEMENTAL EVIDENCE & FORMAL OBJECTION: IS/MND No. ENV25-0002 (2411 N. Glassell St) - Unmitigable Health Impacts

Hayden Beckman <hbeckman@cityoforange.org>

Fri, May 1, 2026 at 10:56 AM

To: Kevin Neu <2489nhartman@gmail.com>, Arlen Beck <abeck@cityoforange.org>

Cc: Nathalie Adourian <nadourian@cityoforange.org>, Kathy Tavoularis <ktavoularis@cityoforange.org>, Don <don.neighbor100@gmail.com>

Hello Kevin,

Thank you for your comment, which has been received and will be included in the project record.

Regards,

Hayden Beckman

Planning Manager

714-744-7229

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From: Kevin Neu <2489nhartman@gmail.com>**Sent:** Thursday, April 30, 2026 9:55 PM**To:** Arlen Beck <abeck@cityoforange.org>**Cc:** Nathalie Adourian <nadourian@cityoforange.org>; Hayden Beckman <hbeckman@cityoforange.org>; Kathy Tavoularis <ktavoularis@cityoforange.org>; Don <don.neighbor100@gmail.com>**Subject:** SUPPLEMENTAL EVIDENCE & FORMAL OBJECTION: IS/MND No. ENV25-0002 (2411 N. Glassell St) - Unmitigable Health Impacts

Dear Senior Planner Beck,

I am submitting this supplemental objection to the Notice of Intent to Adopt a Mitigated Negative Declaration (MND) for the Rexford Industrial project (IS/MND No. ENV25-0002).

This correspondence serves to build upon the severe methodological errors I have already entered into the administrative record—specifically, the use of remote Fullerton Airport meteorological data, the false baseline traffic counts, and the

failure to analyze the 36-dock capacity outlined in "Option 2" (as detailed in my previous emails: "*Gmail - FORMAL OBJECTION: IS/MND No. ENV25-0002... Demand for Full EIR 1*" and "*Gmail - FORMAL OBJECTION... Demand for Full EIR and Proper Mitigation 2*").

Setting aside those fatal flaws in the developer's modeling, the City must now confront the undeniable, peer-reviewed public health science regarding the siting of this facility. The proposed MND entirely fails to mitigate the localized, compounded impact this 24/7 logistics hub will have on Fletcher Elementary School and the adjacent neighborhood.

1. Blatant Violation of CARB's 1,000-Foot Siting Mandate While my previous correspondence addressed the project's violation of the City's § 17.20.220 Residential Mitigation Code, the project also fails state-level health directives. The California Air Resources Board (CARB) *Air Quality and Land Use Handbook* explicitly recommends that agencies "**avoid siting new sensitive land uses within 1,000 feet of a distribution center.**" CARB's dispersion modeling proves that an 80% drop-off in toxic Diesel Particulate Matter (DPM) only occurs at the 1,000-foot mark. Siting a 298,988-square-foot facility with relentless heavy-duty diesel traffic within dozens of feet of property lines ignores this baseline. The developer's proposed 8-foot wall is an insulting attempt to "mitigate" a 45-foot-tall toxic diesel plume.

2. Permanent Respiratory Damage Documented by the USC Children's Health Study The MND treats air quality as a sterile metric of "less than significant" thresholds. We must translate this into the human cost extracted from the 497 students at Fletcher Elementary. The landmark **USC Children's Health Study** definitively proves that children living and learning near heavy vehicle emissions and fossil fuel combustion suffer measurable, irreversible lung damage. The exact cocktail of pollutants emitted by idling trucks—nitrogen dioxide, acid vapor, and elemental carbon—causes stunted lung growth, permanently poorer lung function, and severe spikes in acute asthma. Approving 24/7 operations guarantees chronic sleep disruption, which weakens immune responses and leads to increased school absences. You cannot "mitigate" the physical stunting of a child's lungs.

3. Failure to Address Cumulative Impacts (Attorney General Guidelines) Following the California Attorney General's "Warehouse Best Practices" guidelines, CEQA requires a robust analysis of cumulative impacts. The 2411 N. Glassell project does not exist in a vacuum; it is being shoehorned into an area already burdened by the adjacent BNSF railroad and surrounding industrial uses. The MND fails to adequately measure the compounded toxic air event this new facility will trigger when combined with existing neighborhood pollution sources.

The City of Orange is currently prioritizing a developer's profit over the respiratory health of our children. Between the flawed data models cited in my previous emails and the unmitigable health hazards outlined here, the community has overwhelmingly provided a "fair argument" supported by substantial evidence that this project will have a significant adverse effect on the environment.

CEQA law is clear: an MND is illegal under these circumstances. We demand the City withdraw the Notice of Intent and immediately order a Full Environmental Impact Report (EIR).

Sincerely,
Kevin Neu

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